

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Hill Farming Act, 1946	9 & 10 Geo. 6. c. 73.
Agriculture Act, 1947	10 & 11 Geo. 6. c. 48.
Agriculture (Scotland) Act, 1948	11 & 12 Geo. 6. c. 45.
Agricultural Holdings Act, 1948	11 & 12 Geo. 6. c. 63.
Agricultural Holdings (Scotland) Act, 1949	12, 13 & 14 Geo. 6. c. 75.
Highways (Provision of Cattle-Grids) Act, 1950	14 Geo. 6. c. 24.

CHAPTER 19

An Act to bring certain works for making good war damage within the definition of development in the Town and Country Planning Act, 1947, and the Town and Country Planning (Scotland) Act, 1947, and within the Third Schedule to each of those Acts; and to extend the period limited by section twenty-three of the first-mentioned Act for serving notices thereunder for the enforcement of conditions subject to which planning permission has been granted.

[21st March 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment of relevant provisions of the Town and Country Planning Act, 1947

1.—(1) Paragraph (a) of the proviso to subsection (2) of section twelve of the Town and Country Planning Act, 1947, in this and the next succeeding section referred to as the "principal Act" (which proviso specifies operations deemed for the purposes of that Act not to involve development) shall not apply to any works for making good war damage which, apart from this provision, would fall within that paragraph.

Inclusion of certain war damage works in definition of development.
10 & 11 Geo. 6
c. 51.

(2) The principal Act shall have effect as if such works as aforesaid had been specified in paragraph 1 of the Third Schedule to that Act (which specifies certain development as included in existing use for the purposes of that Act):

Provided that this subsection shall not apply to any such works as aforesaid which do not satisfy the conditions of that paragraph as to the cubic content of buildings.

(3) The principal Act shall have effect, and shall be deemed for all purposes to have had effect, as if it had originally been enacted as amended by the preceding subsections:

Provided that, where any works being such as aforesaid have been begun during the period beginning with the appointed day for the purposes of that Act and ending with the thirteenth day of December, nineteen hundred and fifty, they shall, whether completed during that period or not, be treated for the purposes of that Act as if planning permission had been granted in respect thereof unconditionally.

Limit of time
for serving
notices for
enforcement
of planning
conditions.

2.—(1) In subsection (1) of section twenty-three of the principal Act (which empowers the local planning authority to serve an enforcement notice where it appears to them that development has been carried out without the grant of a permission required, or that any conditions subject to which such a permission was granted in respect of any development have not been complied with, but requires such a notice to be served within four years of such development being carried out), after the words “within four years of such development being carried out” there shall be inserted the words “or, in case of non-compliance with a condition, within four years after the date of the alleged failure to comply with it”.

(2) Any power conferred by the principal Act to adapt or modify the said subsection (1) in its application to any particular matter shall have effect as if that subsection had originally been enacted as amended by this section, and any adaptation or modification thereof made in exercise of any such power before the passing of this Act shall have effect accordingly.

Amendment of relevant provisions of the Town and Country Planning (Scotland) Act, 1947

Inclusion of
certain
war damage
works in
definition of
development.

10 & 11 Geo. 6.
c. 53.

3.—(1) Paragraph (a) of the proviso to subsection (2) of section ten of the Town and Country Planning (Scotland) Act, 1947, in this section referred to as the “principal Act” (which proviso specifies operations deemed for the purposes of that Act not to involve development) shall not apply to any works for making good war damage which, apart from this provision, would fall within that paragraph.

(2) The principal Act shall have effect as if such works as aforesaid had been specified in paragraph 1 of Part I of the Third Schedule to that Act (which specifies certain development as included in existing use for the purposes of that Act):

Provided that this subsection shall not apply to any such works as aforesaid which do not satisfy the conditions of that paragraph as to the cubic content of buildings.

(3) The principal Act shall have effect, and shall be deemed for all purposes to have had effect, as if it had originally been enacted as amended by the preceding subsections of this section:

Provided that, where any works being such as aforesaid have been begun during the period beginning with the appointed day for the purposes of that Act and ending with the thirteenth day of December, nineteen hundred and fifty, they shall, whether completed during that period or not, be treated for the purposes of that Act as if planning permission had been granted in respect thereof unconditionally.

Citation, etc.

4.—(1) This Act may be cited as the Town and Country Planning (Amendment) Act, 1951. Short title,
citation and
construction.

(2) Sections one and two of this Act shall be construed as one with the Town and Country Planning Act, 1947, and that Act and those sections may be cited together as the Town and Country Planning Acts, 1947 and 1951.

(3) Section three of this Act shall be construed as one with the Town and Country Planning (Scotland) Act, 1947, and that Act and that section may be cited together as the Town and Country Planning (Scotland) Acts, 1947 and 1951.

CHAPTER 20

An Act to transfer to the Secretary of State responsibility for the Overseas Food Corporation; to amend the law regulating the functions, constitution and finances of that Corporation; to transfer to the Minister of Food certain rights of that Corporation in relation to the Queensland-British Food Corporation; and for purposes connected with the matters aforesaid.

[21st March 1951.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of this Act, the functions of the Minister of Food under the Overseas Resources Development Act, 1948 (in this Act referred to as "the principal Act") shall be transferred to the Secretary of State at the commencement of this Act. Transfer to
Secretary of
State of
responsibility
for Overseas
Food
Corporation.

(2) Subsection (2) of section six of the principal Act (which defines the expression "the responsible Minister" in relation to 11 & 12 Geo. 6.
c. 15.